

25STCV23514 25STCV23514

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Case Number: 25STCV23514 Hearing Date: July 9, 2026 Dept: 510

No.

15 – Hany A Z Mansour v. American Honda Motor Co., Inc.

Defendant

American Honda Motor Co. Inc.'s Motions for Orders Deeming Requests for Admission Admitted

Defendant

American Honda Motor Co., Inc. moves for an order deeming that Plaintiff Hany A Z Mansour has admitted the truth of the matters specified in Defendant's requests for admission, sets one and two.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., § 2033.250(a).) When a party fails to serve a timely response to requests for admission, "[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." (Code Civ. Proc., § 2033.280(b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280(c).)

Plaintiff failed to serve timely responses to

Defendant's discovery requests. Defendant served its requests for admission on December 12, 2025. (Kenny Decl., ¶ 2.) The extended deadline to respond was January 27, 2026. (Id., ¶ 5.) As of the date this motion was filed, Plaintiff had

still not responded. (Id., ¶ 7.) However, Plaintiff later served responses on June 12, 2026, and accompanying verifications on June 17, 2026. (Peterson Decl., ¶ 3, Exs. A-C.) The Court finds that these responses are in substantial compliance with CCP § 2033.220. Therefore, no order deeming requests for admission admitted is necessary.

Sanctions

Defendant

requests monetary sanctions for \$1,760 against Plaintiff. Code of Civil Procedure section 2033.280(c) provides, "It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." Plaintiff failed to provide any responses by the deadline. Contrary to Plaintiff's suggestion that sanctions should not be imposed where the lack of compliance is based on "substantial justification," sanctions under the Code are mandatory. Further, Plaintiff's counsel's "internal transition" issues do not excuse their obligation to represent Plaintiff's interests.

The

Court exercises its discretion to award the requested sanctions in full.

Disposition

Defendant

American Honda Motor Co., Inc.'s motions to deem matters admitted are granted in part as to sanctions only. Plaintiff Hany A Z Mansour and Plaintiff's counsel of record are ordered, jointly and severally, to pay Defendant \$1,760 in sanctions within 21 days.